



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

April 25, 2025

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 13421
(SEVENTH REVISION)

EXPIRATION DATE: 2029-01-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: SMI Companies. Inc.
Franklin, LA
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale and use of a non-DOT specification portable tank equipped with an external bottom discharge valve conforming to all regulations applicable to a UN portable tank, except as specified herein, for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.243(c) in that a non-DOT specification tank is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of SMI Companies dated February 13, 2025, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
All corrosive liquids authorized for portable tanks in §§ 173.241(c) and 173.242(c)	8	As Appropriate	II & III
Corrosive liquid, acidic, organic, n.o.s.	8	UN3265	II
Corrosive liquid, basic, inorganic, n.o.s.	8	UN3266	II
Corrosive liquid, flammable, n.o.s.	8	UN2920	II
Corrosive liquid, toxic, n.o.s.	8	UN2922	II
Fluoroboric acid	8	UN1775	II
Formic acid	8	UN1779	II
Hydrochloric acid	8	UN1789	II
Hydrofluoric acid, <i>with not more than 60% strength</i>	8	UN1790	II

7. SAFETY CONTROL MEASURES:

a. **PACKAGING:** Prescribed packaging is a non-DOT specification steel portable tank which is designed, constructed and certified in conformance with the ASME Code, including the ASME Code “U” stamp. The tank design conforms with the requirements of a steel UN portable tank, as specified in §178.275, except that the tank has a bottom outlet fitted with three serially-mounted closures consisting of an external discharge valve attached to the bottom flange of the tank, a butterfly valve, and a cam-lock cap at the end of the discharge line. The tank is mounted in an ISO frame. Each tank conforms to drawing numbers 97070622, Revision 0, Sheets 1 and 2, dated 1/19/01, and specifications contained in the special permit application on file with Office of Hazardous Materials Special Permits and Approvals (OHMSPA). The tank design criteria are as follows:

Material of construction -	SA 516 Grade 70
Wall thickness -	0.375 inches
Design pressure -	58 psig
Length -	5'-0" (maximum)

Diameter -	5'-6" (nominal)
Capacity -	1050 gallons
Rotational molded liner -	1/4" Polyethylene
Pressure relief valve -	One 3" on top center
Pressure relief capacity -	8879 SCFM

b. TESTING:

(1) Each tank must be tested, retested and reinspected in accordance with requirements for a steel UN portable tank contained in § 178.273, 178.274 and 180 Subpart G, including approval by a Designated Approval Agency; and

(2) The polyethylene lining for each tank is tested at least once a year using equipment and procedures prescribed by the lining manufacturer or installer. Degraded or defective areas of the liner must be removed and the portable tank shell below the defect must be inspected. If the minimum thickness of the tank shell is below 0.375 inches, the portable tank must be removed from service.

c. OPERATIONAL CONTROLS: The external valve attached to the bottom flange of the tank must be spring-loaded and Air-operated. Both external valves must be closed and the end of the bottom discharge line must be capped during transportation.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6 only in conformance with the terms of this special permit.

b. A person who is not a holder of these special permits, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Special Permits and Approvals for a specific manufacturing facility.

- e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.
- f. MARKING:
- (1) Each tank must be durably marked on two sides near the middle in letters at least 2 inches high on a contrasting background "DOT-SP 13421".
- (2) Each portable tank authorized by this special permit may not be identified or otherwise be represented as a DOT Specification IM 101 or UN portable tank.
- g. This special permit is limited to portable tanks used for transportation in support of offshore oil and gas exploration and production in the Gulf of Mexico within the jurisdiction of the United States of America.
- h. Transportation in international commerce is not authorized.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by § 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) – “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR § 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: TG